

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #16	CCRB Case #: 202100617	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 06/02/2020 8:40 PM	Location of Incident: East 95th Street and Madison Avenue	18 Mo. SOL 5/4/2022	Precinct: 19		
Date/Time CV Reported Tue, 09/15/2020 10:48 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/15/2020 10:48 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Brian Larkin	04183	947155	019 PCT
2. POM Jose Ortiz	22761	968686	052 PCT
3. POF Veronica Martino	07498	960894	070 PCT
4. POM Adan Suazo-Rodas	10750	963771	070 PCT
5. PO Adnan Hussain	00333	961531	070 PCT
6. SGT Ramiro Ruiz	00000	939384	070 PCT
7. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Ronnie Fernandez	05199	934855	CPK PCT
2. POF Tania Mejia	26875	968635	052 PCT
3. INSP Kathleen Walsh	00000	924832	019 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Ramiro Ruiz	Force: Sergeant Ramiro Ruiz struck § 87(2)(b) with a baton.	A . Substantiated
B . PO Adnan Hussain	Force: Police Officer Adnan Hussain struck § 87(2)(b) with a baton.	B . Substantiated
C . POF Veronica Martino	Force: Police Officer Veronica Martino struck § 87(2)(b) with a baton.	C . Substantiated
D . PO Adnan Hussain	Force: Police Officer Adnan Hussain used physical force against § 87(2)(b)	D . Substantiated
E . POM Jose Ortiz	Force: Police Officer Jose Ortiz used physical force against § 87(2)(b)	E . Exonerated
F . POM Jose Ortiz	Force: Police Officer Jose Ortiz struck § 87(2)(b) with a baton.	F . Exonerated
G . POM Adan Suazo-Rodas	Force: Police Officer Adan Suazo-Rodas used physical force against § 87(2)(b)	G . Exonerated
H . PO Adnan Hussain	Discourtesy: Police Officer Adnan Hussain spoke discourteously to § 87(2)(b)	H . Exonerated

Officer(s)	Allegation	Investigator Recommendation
I . POM Adan Suazo-Rodas	Abuse: Police Officer Adan Suazo-Rodas interfered with § 87(2)(b) use of a recording device.	I . Substantiated
J . PO Adnan Hussain	Abuse: Police Officer Adnan Hussain interfered with § 87(2)(b) use of a recording device.	J . Substantiated
K . SGT Ramiro Ruiz	Abuse: Sergeant Ramiro Ruiz interfered with § 87(2)(b) use of a recording device.	K . Substantiated
L . SGT Ramiro Ruiz	Force: Sergeant Ramiro Ruiz used physical force against § 87(2)(b)	L . Substantiated
M . POM Adan Suazo-Rodas	Force: Police Officer Adan Suazo-Rodas struck § 87(2)(b) with a baton.	M . Substantiated
N . An Officer	Force: An officer used physical force against § 87(2)(b)	N . Officer(s) Unidentified
O . POM Brian Larkin	Force: Police Officer Brian Larkin used physical force against § 87(2)(b)	O . Exonerated
P . SGT Ramiro Ruiz	Force: Sergeant Ramiro Ruiz struck an individual with a baton.	P . Substantiated
Q . POM Adan Suazo-Rodas	Force: Police Officer Adan Suazo-Rodas struck § 87(2)(b) with a baton.	Q . Unsubstantiated
R . POF Veronica Martino	Force: Police Officer Veronica Martino struck § 87(2)(b) with a baton.	R . Unsubstantiated
S . PO Adnan Hussain	Force: Police Officer Adnan Hussain struck § 87(2)(b) with a baton.	S . Unsubstantiated
T . POF Veronica Martino	Abuse: Police Officer Veronica Martino threatened to arrest § 87(2)(b)	T . Substantiated
U . POF Veronica Martino	Abuse: Police Officer Veronica Martino interfered with § 87(2)(b) use of a recording device.	U . Substantiated

Case Summary

On September 15, 2020, § 87(2)(b) provided a statement as part of CCRB complaint number § 87(2)(b). In this statement, he reported witnessing FADO allegations against other, unknown civilians, by officers uninvolved in the FADO allegations against himself. On January 27, 2021, the CCRB split these allegations into a new case, § 87(2)(b) for investigation.

At approximately 8:40 p.m. on June 2, 2020, police officers from numerous commands attempted to control and disperse a large protest at the intersection of East 95th Street and Madison Avenue in Manhattan. Sgt. Ramiro Ruiz of the 70th Precinct ran up behind § 87(2)(b) and drove his baton into § 87(2)(b) neck, knocking § 87(2)(b) to the ground (**Allegation A: Force: Nightstick as club: Substantiated**). PO Adnan Hussain and PO Veronica Martino of the 70th Precinct allowed § 87(2)(b) to stand up, then struck him repeatedly with their batons (**Allegation B: Force: Nightstick as club: Substantiated, Allegation C: Force: Nightstick as club: Substantiated**). PO Hussain then grabbed § 87(2)(b) clothing at the chest and spun him around (**Allegation D: Force: Physical Force: Substantiated**).

Other officers ran towards the incident, and PO Jose Ortiz of the 52nd Precinct grappled with § 87(2)(b) (**Allegation E: Force: Physical Force: Exonerated**). PO Ortiz struck § 87(2)(b) with his baton once (**Allegation F: Force: Nightstick as club: Exonerated**), then continued wrestling with § 87(2)(b) (within **Allegation E**). PO Adan Suazo-Rodas of the 70th Precinct reached the incident and wrestled with § 87(2)(b) assisting PO Ortiz in bringing him to the ground (**Allegation G: Force: Physical Force: Exonerated**). As PO Ortiz, PO Hussain, and PO Tania Mejia of the 52nd Precinct restrained § 87(2)(b) on the ground, PO Hussain told him to “stop fucking resisting” (**Allegation H: Discourtesy: Word: Exonerated**).

§ 87(2)(b) saw this incident unfolding from his apartment window, came downstairs, and began recording the incident with his cellphone from the building threshold. PO Suazo-Rodas and PO Hussain ordered § 87(2)(b) to go inside while stepping toward him (**Allegation I: Abuse of Authority: Interference with recording: Substantiated, Allegation J: Abuse of Authority: Interference with recording: Substantiated**), and Sgt. Ruiz shoved § 87(2)(b) to the ground (**Allegation K: Abuse of Authority: Interference with recording: Substantiated, Allegation L: Force: Physical Force: Substantiated**).

§ 87(2)(b) saw Sgt. Ruiz shove § 87(2)(b) to the ground and walked towards that confrontation. PO Suazo-Rodas blocked § 87(2)(b) from advancing further, walked towards § 87(2)(b) and struck him with his baton (**Allegation M: Force: Nightstick as club: Substantiated**). § 87(2)(b) continued to back up, and a white-shirted supervisor began wrestling with him (**Allegation N: Force: Physical Force: Officer Unidentified**). PO Brian Larkin of the 19th Precinct saw this struggle and began wrestling with § 87(2)(b) as well, bringing him to the ground (**Allegation O: Force: Physical Force: Exonerated**). A few feet away, Sgt. Ruiz swung his baton at an unidentified protester twice (**Allegation P: Force: Nightstick as club: Substantiated**). Once § 87(2)(b) was on the ground, PO Suazo-Rodas, PO Martino, and PO Hussain struck § 87(2)(b) multiple times with their batons on the upper body, leg, and torso, respectively (**Allegation Q: Force: Nightstick as club: Unsubstantiated, Allegation R: Force: Nightstick as club:**

Unsubstantiated, Allegation S Force: Nightstick as club: Unsubstantiated). § 87(2)(b) filmed § 87(2)(b) apprehension from the sidewalk. PO Martino approached him and asked, “Do you wanna get arrested too?” (**Allegation T: Abuse of Authority: Threat of arrest: Substantiated, Allegation U: Abuse of Authority: Interference with recording: Substantiated**).

The investigation obtained two civilian cellphone videos of this incident. § 87(2)(b) recorded the incident from the south side of East 95th Street (**Board Review 01**, referred to hereafter as § 87(2)(b) while § 87(2)(b) recorded from the north side (**Board Review 02**, referred to hereafter as “§ 87(2)(b)”). In addition, § 87(2)(b) provided surveillance video (apparently recorded second-hand with a cellphone) from his apartment building’s security system (**Board Review 03**, referred to hereafter as “**Surveillance**”). Finally, the investigation obtained a BWC video from PO Larkin (**Board Review 04**, referred to hereafter as “**BWC**”). The investigation also obtained BWC videos from other involved or nearby officers, but these videos do not contain information relevant to the analysis of FADO allegations and have not been marked for Board review.

The FADO allegations took place over approximately three-and-a-half minutes. The four material videos each start and end at slightly different points, and many of the involved civilians and officers moved around as the incident unfolded. The investigation’s identification of officers and analysis of FADO allegations depend in part on connecting information displayed in one video to that drawn from others. To aid the reader of this report, an annotated Google Maps Street View image shows the approximate vantage points of the four material videos (**Board Review 05**). Furthermore, the investigation has compiled still-image layouts and composite videos to clarify key points in the incident that may be unclear when first viewed from a single angle. These exhibits are described and marked for Board review throughout this report.

Findings and Recommendations

Allegation A – Force: Nightstick as club: Sergeant Ramiro Ruiz struck § 87(2)(b) with a baton.

Allegation B – Force: Nightstick as club: Police Officer Adnan Hussain struck § 87(2)(b) with a baton.

Allegation C – Force: Nightstick as club: Police Officer Veronica Martino struck § 87(2)(b) with a baton.

Allegation D – Force: Physical Force: Police Officer Adnan Hussain used physical force against § 87(2)(b)

Allegation E – Force: Physical Force: Police Officer Jose Ortiz used physical force against § 87(2)(b)

Allegation F – Force: Nightstick as club: Police Officer Jose Ortiz struck § 87(2)(b) with a baton.

Allegation G – Force: Physical Force: Police Officer Adan Suazo-Rodas used physical force against § 87(2)(b)

Allegation H – Discourtesy: Word: Police Officer Adnan Hussain spoke discourteously to § 87(2)(b)

§ 87(2)(b) provided a statement over the phone on September 15, 2020 (**Board Review 06**). § 87(2)(b) provided a statement via Microsoft Teams on March 12, 2021 (**Board Review 07**). § 87(2)(b) declined to provide a statement to the CCRB on May 21, 2021, citing a settled lawsuit regarding this incident (see IA#34 and **Board Review 08**). PO Martino was interviewed on September 15, 2020 (**Board Review 09**). Sgt. Ruiz was interviewed on January 25, 2022 (**Board Review 10**). PO Hussain was interviewed on February 8, 2022 (**Board Review 11**). PO Suazo-Rodas was interviewed on March 8, 2022 (**Board Review 12**).

§ 87(2)(b) and PO Suazo-Rodas provided consistent accounts of how this incident began. A large protest moved through Manhattan, eventually reaching the incident intersection. Police had previously followed and escorted the protest without major incident. However, once the Mayoral curfew went into effect, officers began arresting protesters.

§ 87(2)(b) and § 87(2)(b) saw approximately four officers “chase” § 87(2)(b) toward a building’s entrance area, swinging batons at him and bringing him to the ground. Neither civilian knew why officers apprehended § 87(2)(b) specified that § 87(2)(b) was the first civilian to get arrested in this incident, and that officers used force against § 87(2)(b) for approximately 60 to 90 seconds.

The civilians’ accounts are consistent with **Surveillance (Board Review 03)**, the video that starts earliest in the incident timeline. As the video starts, the visible section of East 95th Street is empty of pedestrians and moving vehicles. Several civilians walk and jog into the video frame from the bottom right corner, moving north via the crosswalk mediating the intersection with Madison Avenue. These civilians quickly leave the video frame, with a few briefly visible on the northern sidewalk.

At 0:40, a new wave of civilians, on foot and on bicycles, enter the frame from the same direction, many of them riding or walking quickly. At 0:45, a civilian in dark clothing appears from the bottom of the frame, wheeling a loudspeaker with a cardboard sign affixed to it behind him along the sidewalk. PO Martino (to the viewer’s left of the loudspeaker) and another officer (to the viewer’s right of the loudspeaker) follow closely, and both officers swing their batons at the loudspeaker.

At 0:50, § 87(2)(b) enters the frame from the bottom edge, wearing a head cloth and a dark blue jacket. He is alone, emptyhanded, and does not commit any visible violation or crime (beyond remaining outside after the curfew). He does not approach any officer closely. At 0:51, Sgt. Ruiz runs into the frame from the bottom right corner, holding his baton across his chest with one hand on either end of the baton’s length. PO Hussain jogs behind him, trailing Sgt. Ruiz by a few steps. While running, Sgt. Ruiz slams his baton into § 87(2)(b) shoulders, neck, or head, knocking § 87(2)(b) forward and to the ground. Sgt. Ruiz stands over § 87(2)(b) briefly, then walks away, leaving the video frame via the bottom edge. Three additional officers (including the officer originally walking near PO Martino) follow Sgt. Ruiz out of the frame, and these officers collectively take no actions to apprehend § 87(2)(b).

At 0:56, as § 87(2)(b) stands up, PO Hussain uses one hand to pull him to his feet. PO Hussain then strikes § 87(2)(b) one time with his baton. For approximately four seconds, neither PO Martino nor PO Hussain use further force against § 87(2)(b) who remains standing in one place while apparently speaking or shouting at the officers. At 1:04, PO Martino and PO Hussain both begin using force again. PO Martino strikes § 87(2)(b) four times with her baton while PO Hussain uses his right hand to grip § 87(2)(b).

clothing at the chest and push him backwards up against the building wall. PO Hussain briefly releases this grip, then reestablishes it, stepping backward and using his weight and strength to swing § 87(2)(b) in a full circle around himself. Throughout this process, § 87(2)(b) does not visibly resist or attack either PO Martino or PO Hussain.

At this point (1:12), several officers enter the frame from the bottom edge and approach the struggle at varying speeds. PO Ortiz reaches the struggle first, wrestling with § 87(2)(b) striking him one time across the back with his baton, and then wrestling with him further. This force pushes § 87(2)(b) west along the sidewalk toward the green entrance awning of § 87(2)(b). The involved officers all follow the struggle, and PO Ortiz and PO Suazo-Rodas jointly tackle § 87(2)(b) to the ground at 1:23. § 87(2)(b) lands partly on the sidewalk and partly in the parking lane pavement, just in front of a parked, blue, civilian sedan.

It is at approximately this point in the incident that the § 87(2)(b) cellphone video begins (**Board Review 01**). The following portion of the report explains how the investigation identified the abovementioned subject officers, using **Surveillance (Board Review 03)** and § 87(2)(b) (**Board Review 01**) in tandem and tracking subject officers from the moment(s) their identities become clear back to the moments where they commit FADO allegations.

As noted above, Sgt. Ruiz first appears in the available video at 0:51 in **Surveillance (Board Review 03)**. The investigation screen-captured and cropped several frames in which his sergeant's chevrons and forearm tattoos are visible, albeit blurrily (**Board Review 13**). Sgt. Ruiz next appears at 1:15 in the same video, at the right edge of the frame near the bottom right corner. His chevrons and forearm tattoos are again visible. Playing from 1:15 in **Surveillance**, the viewer can track Sgt. Ruiz as he turns around, jogs west along East 95th Street towards § 87(2)(b) apprehension, reaches the struggle with § 87(2)(b) already on the ground, and walks around the struggle to a position just under the green awning (near § 87(2)(b) head). A supplementary photo layout shows Sgt. Ruiz's movement over this portion of the incident (**Board Review 14**).

§ 87(2)(b) (**Board Review 01**) begins at this point, and Sgt. Ruiz is immediately visible standing over § 87(2)(b) head, his chevrons and forearm tattoos visible. Sgt. Ruiz uses minimal physical contact to try and get § 87(2)(b) right arm behind his back but takes no further action at this point. At 0:13 in § 87(2)(b) (**Board Review 01**), Sgt. Ruiz stands up and walks away from the camera, into the vehicle lane of East 95th Street. After moving back and forth within the vehicle lane for a few seconds, he turns back toward the camera and walks toward § 87(2)(b). After shoving § 87(2)(b) to the ground (see **Allegations K and L**), Sgt. Ruiz walks away from camera and stands with his back to it, next to Ins. Kathleen Walsh of the 19th Precinct (seen wearing a white supervisor's uniform shirt and helmet number 18671). A supplementary photo layout shows Sgt. Ruiz's movement over this portion of the incident (**Board Review 15**).

At 0:55 in § 87(2)(b) (photo 4 of **Board Review 15**), Sgt. Ruiz's right forearm tattoos are clearly visible, including a large, Gothic-style "R." In his interview, Sgt. Ruiz viewed this portion of the video, confirmed that he has such a tattoo, and stated that he believed he was the officer shown in the video based on the tattoo. Based on this self-identification and Sgt. Ruiz's consistent presence in § 87(2)(b) (**Board Review 01**) and **Surveillance (Board Review 03)**, the investigation was able to identify Sgt. Ruiz as the subject of **Allegation A**.

As noted above, PO Hussain first appears in the available video at 0:52 in **Surveillance (Board Review 03)**. He strikes § 87(2)(b) with a baton and repeatedly

wrestles with him. By 1:29 in that video, he is visible with his back to the viewer, partially underneath the green building awning, helping to restrain § 87(2)(b) on the ground. A supplementary photo layout shows PO Hussain's movement over this portion of the incident (**Board Review 16**). PO Hussain is also visible at the start of § 87(2)(b) (**Board Review 01**), with his face briefly visible at 0:11 (see **Board Review 17** for still image). At 0:09 of § 87(2)(b) PO Hussain shouts "Stop fucking resisting" at § 87(2)(b). At 0:20, PO Hussain's silver ring (on his left hand) is visible (see **Board Review 18** for still image). At 0:52 of **BWC** (**Board Review 04**), PO Hussain's face and shield are visible, and his shield number (333) is legible (see **Board Review 19** for still image). At 1:08 in **BWC**, PO Hussain's silver ring is visible, further clarifying that he is the officer visible at the beginning of § 87(2)(b) (see **Board Review 20** for still image). At 2:20 of § 87(2)(b) (**Board Review 01**), PO Hussain's helmet number (333, matching his shield) is also visible (see **Board Review 21** for still image). Based on PO Hussain's consistent presence in § 87(2)(b) and **Surveillance**, the investigation was able to identify him as the subject of **Allegations B, D, and H**.

As noted above, PO Martino first appears in the available video at 0:45 in **Surveillance** (**Board Review 03**). After striking § 87(2)(b) repeatedly with her baton, she pursues the struggle, remaining on the sidewalk until approximately 1:38. A supplementary photo layout shows PO Martino's movement over this portion of the incident (**Board Review 22**). At this point in the incident, she is also visible at 0:01 of § 87(2)(b) (**Board Review 01**), at the left side of the video frame, with her back to the viewer, her helmet's face shield flipped up, and her dark hair protruding from the back of her helmet (see **Board Review 23** for still image). PO Martino is repeatedly visible in § 87(2)(b) (**Board Review 01**) as the incident unfolds, and at 2:24 her helmet number (7498, matching her assigned shield number) is visible (see **Board Review 24** for still image). The combined videos make it clear that PO Martino was the officer seen in **Surveillance** using her baton against § 87(2)(b).

As noted above, PO Ortiz first appears in the available video at 1:12 in **Surveillance** (**Board Review 03**). After bringing § 87(2)(b) to the ground, PO Ortiz becomes clearly visible in § 87(2)(b) (**Board Review 01**). At 0:09 in § 87(2)(b) PO Ortiz's helmet number (22761, matching his assigned shield number) is visible (see **Board Review 25** for still image). The combined videos make it clear that PO Ortiz was the officer seen in **Surveillance** bringing § 87(2)(b) to the ground.

PO Suazo-Rodas first appears in the available video at 1:13 in **Surveillance** (**Board Review 03**). After helping PO Ortiz bring § 87(2)(b) to the ground, PO Suazo-Rodas becomes clearly visible in § 87(2)(b) (**Board Review 01**). At 0:00 (see **Board Review 26** for still image) and 0:05 in § 87(2)(b) PO Suazo-Rodas' helmet number (10750, matching his assigned shield number) is visible. The combined videos make it clear that PO Suazo-Rodas was the officer seen in **Surveillance** helping bring § 87(2)(b) to the ground.

In their interviews, Sgt. Ruiz, PO Hussain, PO Martino, and PO Suazo-Rodas all repeatedly denied having any material recollection of this portion of the incident. The officers all cited the amount of time between the incident and their interviews, the chaotic nature of the incident, and the similarity between the incident and other protests that they responded to within the same week as factors leading to their lack of recollection. None of the officers provided rationales for using force against § 87(2)(b) or acknowledged knowing who he was. The investigation played material sections of all four videos for each officer, pointing out key moments and providing context to clarify how the videos related

to one another spatially and chronologically. None of the available video refreshed any officer's recollection or prompted them to make further statements about the depicted events.

On June 1, 2020, then-Mayor De Blasio issued Emergency Executive Order Number 118, enacting a curfew prohibiting all non-essential people and vehicles from being in public from 8:00 p.m. on June 2 to 5:00 a.m. on June 3. Failure to comply with this Order was to result in orders to disperse, and any person who knowingly violated the provisions in this Order was to be guilty of a Class B misdemeanor (**Board Review 27**).

Under NYPD Patrol Guide Procedure 221-01, officers may use force when it is reasonable to ensure the safety of an officer or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. In determining whether the use of force is reasonable, officers should consider the following: the nature and severity of the crime/circumstances, actions taken by the subject, immediacy of the perceived threat or harm to the subject, officers, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, the number of subjects in comparison to the number of officers, and the size, age, and condition of the subject in comparison to the officers (**Board Review 28**).

Under DAO-DCT Case Number 2015-15012, discourteous language may be excusable when an officer is speaking in the context of a dynamic situation over which he is still attempting to gain control. (**Board Review 29**).

The available evidence makes it clear that this incident unfolded after the Mayoral curfew went into effect. § 87(2)(g)

§ 87(2)(b) The surveillance video's lack of audio and the subject officers' stated lack of recollection make it impossible to say whether § 87(2)(b) received dispersal orders. § 87(2)(g)

§ 87(2)(b) Sgt. Ruiz ran up behind him and drove a baton into his spine. Based on the available video, this was the first action any officer took towards § 87(2)(b) § 87(2)(g)

§ 87(2)(b). Furthermore, Sgt. Ruiz made no subsequent attempt to apprehend § 87(2)(b) immediately turning and jogging away after knocking him to the ground. Neither PO Martino nor PO Hussain made any effort to keep § 87(2)(b) on the ground; indeed, PO Hussain actively lifted § 87(2)(b) to his feet, where § 87(2)(b) remained for several seconds. Only then did PO Martino and PO Hussain resume using force against him, including baton strikes and wrestling. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegations A, B, C, and D be substantiated.**

The available video indicates that PO Ortiz and PO Suazo-Rodas were not present for the beginning of this incident § 87(2)(g)

§ 87(2)(b), PO Ortiz and PO Suazo-Rodas ran toward § 87(2)(b) after PO Hussain began grappling with him. During an undisputedly

large, chaotic protest, § 87(2)(g)

It is therefore recommended that **Allegations E, F, and G** be **exonerated**.

The § 87(2)(b) video shows that PO Hussain cursed at § 87(2)(b) while officers were still trying to handcuff him. A large civilian crowd was protesting nearby, with scattered civilians approaching the apprehension area from the vehicle lane. § 87(2)(g)

it is therefore recommended that **Allegation H** be **exonerated**.

Allegation I – Abuse of Authority: Interference with recording: Police Officer Adan Suazo-Rodas interfered with § 87(2)(b) use of a recording device.

Allegation J – Abuse of Authority: Interference with recording: Police Officer Adnan Hussain interfered with § 87(2)(b) use of a recording device.

Allegation K – Abuse of Authority: Interference with recording: Sergeant Ramiro Ruiz interfered with § 87(2)(b) use of a recording device.

Allegation L – Force: Physical Force: Sergeant Ramiro Ruiz used physical force against § 87(2)(b)

§ 87(2)(b) provided a statement over the phone to the CCRB on July 21, 2021 (**Board Review 30**).

In his phone statement, § 87(2)(b) said that shortly after he began recording, a light-skinned, stocky officer approached him and extended his nightstick into his chest. § 87(2)(b) lost his balance, tripped on a planter next to the building entrance, and fell backwards on to the ground. The officer then walked away. § 87(2)(b) provided a similar account, saying that he first noticed § 87(2)(b) because he was standing within the same field of view as § 87(2)(b) ongoing arrest. Within approximately a minute, multiple officers approached the older man and used their batons to “hockey crosscheck” him to the ground.

Both **Surveillance (Board Review 03)** and § 87(2)(b) (**Board Review 01**) corroborate the civilians’ account. First, at 1:27 of **Surveillance**, Sgt. Ruiz uses his baton to point at § 87(2)(b) who is partially visible as a white figure on the edge of the white brick building, under the green awning. From 1:27 to 1:33, an officer wearing white gloves approaches § 87(2)(b) interacts with him briefly, then turns away and steps back towards § 87(2)(b) apprehension. These events happen roughly 10 seconds before § 87(2)(b) begins, with 1:37 of **Surveillance** corresponding to the start of § 87(2)(b)

Over the first 30 seconds § 87(2)(b) (**Board Review 01**), § 87(2)(b) remains stationary at the threshold of his building, several steps away from § 87(2)(b) ongoing apprehension. § 87(2)(b) repeatedly encourages § 87(2)(b) to cooperate with the officers, not resist, and to remain calm because § 87(2)(b) was recording the incident. At 0:30 of § 87(2)(b) PO Hussain and PO Suazo-Rodas both approach § 87(2)(b) closely and order him to go inside. § 87(2)(b) replies that he is inside, and the video frame briefly shakes and wobbles. Sgt. Ruiz then approaches § 87(2)(b) tells him to go inside, and shoves him backwards on to the building threshold. The video again becomes visually incoherent, returning to stability after a few seconds.

Surveillance (Board Review 03) helps clarify what happened as PO Hussain, PO Suazo-Rodas, and Sgt. Ruiz approached, shouted at, and shoved § 87(2)(b) At 2:07 in

Surveillance, PO Hussain and PO Suazo-Rodas simultaneously approach § 87(2)(b) from the left and the right of § 87(2)(b) apprehension. This corresponds to 0:30 of § 87(2)(b) (**Board Review 01**), mentioned above. Sgt. Ruiz then approaches § 87(2)(b) and at 2:13 of **Surveillance**, Sgt. Ruiz shoves § 87(2)(b) to the ground, closes a gate or door towards § 87(2)(b) position, and uses his foot to push the door a second time. All three officers then walk away from § 87(2)(b). The investigation cropped and resized the relevant portion of **Surveillance** (**Board Review 31**) and created a side-by-side video of the relevant portions of **Surveillance** and § 87(2)(b) (**Board Review 32**) to aid the reader in reviewing these events.

As noted in **Allegations A through H**, the subject officers denied any recollection of these allegations or their context. The officers provided no explanation for why they took these actions, even after being shown the relevant videos. Instead, the officers expressed uncertainty as to whether they were the officers shown in those videos.

Under NYPD Patrol Guide Procedure 203-29, individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests, or uses of force. This right extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces, or an individual's own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/videotaping. Whenever the above situation exists, officers must not threaten, intimidate, or otherwise discourage an observer from recording the police officer's activities (**Board Review 33**).

The video evidence makes it clear that § 87(2)(b) was apprehended in public, and that § 87(2)(b) observed and recorded the incident § 87(2)(g). Furthermore, as § 87(2)(b) prepared to record, an officer approached him closely, allowed him to remain where he was, and then went back to assisting his fellow officers.

§ 87(2)(g)
It is therefore recommended that **Allegations I, J, K, and L** be **substantiated**.

Allegation M – Force: Nightstick as club: Police Officer Adan Suazo-Rodas struck § 87(2)(b) with a baton.

Allegation N – Force: Physical force: An officer used physical force against § 87(2)(b).

Allegation O – Force: Physical Force: Police Officer Brian Larkin used physical force against § 87(2)(b).

Allegation P – Force: Nightstick as club: Sergeant Ramiro Ruiz struck an individual with a baton.

Allegation Q – Force: Nightstick as club: Police Officer Adan Suazo-Rodas struck § 87(2)(b) with a baton.

Allegation R – Force: Nightstick as club: Police Officer Veronica Martino struck § 87(2)(b) with a baton.

Allegation S – Force: Nightstick as club: Police Officer Adnan Hussain struck § 87(2)(b).

§ 87(2)(b) with a baton.

§ 87(2)(b) and § 87(2)(b) provided broadly consistent accounts of the next portion of the incident. § 87(2)(b) wearing a bright orange construction worker's helmet, orange-and-black backpack, and industrial respirator, saw the officers shove § 87(2)(b) to the ground, approached the officers, and shouted for them to leave § 87(2)(b) alone. An officer approached § 87(2)(b) and swung their baton at him. As § 87(2)(b) backed away, multiple officers came towards him. § 87(2)(b) said that a male officer in a supervisor's white shirt shouted "Him!", apparently pointing out § 87(2)(b) to subordinate officers. Approximately four or five blue-uniformed officers approached him, all swinging their batons. § 87(2)(b) caught one baton in each hand to prevent them from hitting him. § 87(2)(b) limited his resistance to avoiding or blocking baton strikes because he did not want to be injured, but he did not grab any of the officers or otherwise try to fight or injure them. After a brief struggle, multiple officers grabbed § 87(2)(b) across his upper body, and he decided to surrender and go to the ground. He went to the ground of his own volition and did not resist once he was flat on his stomach. However, an unknown officer or officers then pulled off his helmet and struck him approximately two or three times in the head with a baton. These strikes opened a laceration on the crown of his head and blood ran down to his face. He also felt multiple baton strikes against his torso and limbs while he was on the ground but could not describe these strikes further. He did not know which officer or officers took off his helmet and struck him on the ground because he was positioned facedown.

The available video largely corroborates the civilians' account of this portion of the incident, while contradicting certain details. At 2:14 in **Surveillance (Board Review 03)**, § 87(2)(b) is visible standing in the vehicle lane of East 95th Street near the front passenger door of a silver or white civilian sedan. He is identifiable based on his orange helmet and backpack. He points toward the entrance to § 87(2)(b) where Sgt. Ruiz is in the process of shoving § 87(2)(b) to the ground (see **Allegations K and L**). As Sgt. Ruiz closes the building door on § 87(2)(b) walks towards the conflict, reaches the edge of the sidewalk, and then stops of his own volition. The officers near the building entrance all turn, and PO Suazo-Rodas walks toward § 87(2)(b) quickly, separating himself from the other officers by a few steps. As PO Suazo-Rodas steps forward, § 87(2)(b) immediately begins backing up approximately three steps. PO Suazo-Rodas cocks his baton back across his own body, winding up to strike (2:21 of **Surveillance**). § 87(2)(b) takes several more steps backward, and Sgt. Ruiz and PO Hussain form a rough line with PO Suazo-Rodas. PO Suazo-Rodas takes several quick steps forward and swings his baton at § 87(2)(b) body. § 87(2)(b) is backing up at this point and backs out of the video frame via the right edge as several officers surround him. A supplementary photo layout shows § 87(2)(b) and PO Suazo-Rodas' movement over this portion of the incident (**Board Review 34**).

Additionally, the § 87(2)(b) cellphone video (**Board Review 02**) captures portions of these allegations from another angle. At 0:55 in § 87(2)(b) § 87(2)(b) is visible (from behind) standing in the vehicle lane of East 95th Street. This moment corresponds to 2:14 of **Surveillance (Board Review 03)**. At 1:03 in § 87(2)(b) § 87(2)(b) reaches the sidewalk and PO Suazo-Rodas begins to approach him. The camera does not consistently focus on § 87(2)(b) but from 1:15 to 1:17, § 87(2)(b) shows PO Suazo-Rodas wind up with his baton and swing it at § 87(2)(b). The investigation has placed a cropped portion of § 87(2)(b) side

by side with **Surveillance** so that the reader can view this portion of the incident simultaneously from both angles (**Board Review 35**).

At this point in the incident, the available video fails to capture the incident clearly. Both § 87(2)(b) (**Board Review 02**) and **BWC** (**Board Review 04**) show that a male officer in a white supervisor's shirt grabbed § 87(2)(b) by the torso and arms and began grappling with him. A few seconds later, PO Larkin (whose camera recorded the **BWC** video) also began grappling with § 87(2)(b). After a few more seconds of struggle, PO Larkin brought § 87(2)(b) to the ground via unclear tactics.

The § 87(2)(b) video (**Board Review 01**) does not show this portion of the incident. However, by 1:16 in § 87(2)(b) § 87(2)(b) has walked several steps from his original position in the building entrance towards § 87(2)(b) § 87(2)(b) new position on the ground in the middle of the vehicle lane. At 1:17 in § 87(2)(b) Sgt. Ruiz raises his baton back and overhead with his right arm, then swings it down forcefully (see **Board Review 36** for a still image of this moment). Approximately two seconds later, § 87(2)(b) has walked further down the sidewalk and Sgt. Ruiz can be seen raising his baton again. At 1:20 in § 87(2)(b) the viewer can now see that Sgt. Ruiz is facing a short, thin- or medium-build protester with a large head of curly hair, holding a white paperboard sign that reads "fuck the police" in their left hand and a cellphone in their right. At 1:21, Sgt. Ruiz swings the baton down forcefully at this protester a second time. Ins. Kathleen Walsh of the 19th Precinct is visible next to Sgt. Ruiz (wearing a white supervisor's shirt and long hair protruding from her helmet), using a two-handed grip on her baton to form a barrier and push any approaching civilians back. At 1:25, Sgt. Ruiz's profile, chevrons, and forearm tattoos are visible, helping to identify him as the subject officer here (see **Board Review 37** for a still image of this moment).

Over the same time that § 87(2)(b) (**Board Review 01**) shows Sgt. Ruiz swinging at the unidentified protestor, the same video shows PO Larkin, PO Hussain, PO Martino, and PO Suazo-Rodas struggling with § 87(2)(b) on the ground. PO Martino grabs one of § 87(2)(b) § 87(2)(b) legs and hits it approximately seven times with her baton. Her helmet number is visible while she does this. Slightly to the viewer's right of PO Martino, PO Hussain has his back to the camera. His helmet number is also visible as he first wrestles with § 87(2)(b) § 87(2)(b) then stands up and steps backwards before swinging his baton downward with both hands one time on to § 87(2)(b) § 87(2)(b) leg or torso. Slightly to the viewer's right of PO Hussain, PO Suazo-Rodas puts his left foot on § 87(2)(b) § 87(2)(b) body and uses it, along with both hands, to pull his baton free of § 87(2)(b) § 87(2)(b) grip. PO Suazo-Rodas then uses a two-handed grip to repeatedly lever or snap his baton in short motions into § 87(2)(b) § 87(2)(b) body. His helmet number is also visible while he does this. PO Larkin is intermittently visible in this portion of video, facing towards the video viewer across § 87(2)(b) § 87(2)(b) body from PO Hussain and apparently grappling with § 87(2)(b) § 87(2)(b). His **BWC** video (**Board Review 04**) matches up with this portion of the incident, and at 0:53 of **BWC** the viewer can see § 87(2)(b) § 87(2)(b) (wearing a white shirt and tan pants) walk into the video frame while recording his own video.

In his interview, PO Larkin repeatedly stated that he had almost no independent recollection of the incident, especially the portion involving § 87(2)(b) § 87(2)(b) apprehension. He referred to his **BWC** as the source of his understanding of what happened, and described the events shown in the **BWC** reasonably accurately. He explained that he began grappling with § 87(2)(b) § 87(2)(b) after § 87(2)(b) § 87(2)(b) backed into his field of vision and the white-shirted supervisor began apprehending him. His goal at the point was to assist his superior officer in making an arrest, but he did not know anything about what had preceded

§ 87(2)(b) entering his field of view. PO Larkin did not know how he and § 87(2)(b) came to be on the ground, including whether it was due to an officer (including himself) intentionally using force, § 87(2)(b) resisting, or an accident. PO Larkin denied striking § 87(2)(b) while § 87(2)(b) was on the ground, removing § 87(2)(b) helmet, or seeing other officers do these things.

None of the available video shows any officer intentionally removing § 87(2)(b) helmet and striking his unprotected head with a baton or body part. None of the video offers a clear frame of the white-shirted supervisor's nameplate, collar brass, face, or other potentially identifying features. The investigation asked every interviewed officer (including those listed in the case file solely as witnesses) whether they recognized this supervisor, but none of the officers knew who he was, what his role or rank was, or to what command he might be assigned.

Under NYPD Patrol Guide Procedure 221-01, officers may use force when it is reasonable to ensure the safety of an officer or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. In determining whether the use of force is reasonable, officers should consider the following: the nature and severity of the crime/circumstances, actions taken by the subject, immediacy of the perceived threat or harm to the subject, officers, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, the number of subjects in comparison to the number of officers, and the size, age, and condition of the subject in comparison to the officers (**Board Review 28**).

§ 87(2)(g) The video shows that § 87(2)(b) stopped approaching a few yards from the officers and made no moves to attack them. The moment that PO Suazo-Rodas came towards him, § 87(2)(b) immediately backed away. He continued to back away as PO Suazo-Rodas continued to advance, right up until PO Suazo-Rodas swung his baton. PO Suazo-Rodas was closely accompanied at this point by Sgt. Ruiz and PO Hussain, neither of whom threatened to use or used force against § 87(2)(b) § 87(2)(g). it is therefore recommended that **Allegation M** be **substantiated**.

Similarly, Sgt. Ruiz swung his baton twice at a physically smaller protester who was holding a paper sign in one hand and a cellphone in the other. The video shows that the protester made no move to attack Sgt. Ruiz or other officers. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that **Allegation P** be **substantiated**.

§ 87(2)(g) The video shows § 87(2)(b) grabbing and holding PO Suazo-Rodas' baton at one point, and

the does not clearly show whether he resisted in other ways during the relevant portion of the incident. § 87(2)(g)

it is therefore recommended that **Allegations Q, R, and S be unsubstantiated.**

§ 87(2)(g)

It is therefore recommended that **Allegation N** be closed as **officer unidentified.**

Allegation T – Abuse of Authority: Threat of arrest: Police Officer Veronica Martino threatened to arrest § 87(2)(b)

Allegation U – Abuse of Authority: Interference with recording: Police Officer Veronica Martino interfered with § 87(2)(b) **use of a recording device.**

At 2:45 in § 87(2)(b) (**Board Review 01**), § 87(2)(b) is standing on the sidewalk and filming officers escort § 87(2)(b) away from the scene. An apparently male voice tells § 87(2)(b) to step back, and § 87(2)(b) walks back towards his apartment building while telling the officer that he is “fine.” At 2:50 the male voice tells § 87(2)(b) that he needs to be inside. PO Martino then approaches § 87(2)(b) and asks him “you gotta go inside, do you want to get arrested too?” PO Martino and the male voice both refer to the curfew and to people’s obligation to be home, and § 87(2)(b) replies that he is home. As PO Martino steps away from § 87(2)(b) her profile and helmet number are clearly visible (see 3:13 of § 87(2)(b)).

In her interview, PO Martino initially stated that she did not recall threatening to arrest anyone fitting § 87(2)(b) general description. The investigation played the relevant portion of § 87(2)(b) for her review, and she acknowledged hearing a voice make the threat in questions. She said, however, that she did not make this statement and the voice was not hers because it did not sound like her voice. Based on what was the video, PO Martino did not believe that § 87(2)(b) committing an arrestable offense during this portion of the incident.

The investigation cannot credit PO Martino’s denial of this allegation, given the clear video showing her approach § 87(2)(b) stand near him, and walk away. Beyond PO Mejia, who the video shows standing with § 87(2)(b) and not interacting with § 87(2)(b) there were no other female officers in the area when this allegation occurred. Based on the video, the investigation concludes that it was PO Martino who threatened § 87(2)(b) with arrest.

Under NYPD Patrol Guide Procedure 203-29, individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests, or uses of force. This right extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces, or an individual’s own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the

individual(s) who are observing/videotaping. Whenever the above situation exists, officers must not threaten, intimidate, or otherwise discourage an observer from recording the police officer's activities (**Board Review 33**).

On June 1, 2020, then-Mayor De Blasio issued Emergency Executive Order Number 118, enacting a curfew prohibiting all non-essential people and vehicles from being in public from 8:00 p.m. on June 2 to 5:00 a.m. on June 3. Failure to comply with this Order was to result in orders to disperse, and any person who knowingly violated the provisions in this Order was to be guilty of a Class B misdemeanor (**Board Review 27**).

At the point that PO Martino threatened him with arrest, § 87(2)(b) was steps from his own doorway and in the process of recording a serious police-involved incident (which included, as detailed in this report, numerous instances of misconduct). § 87(2)(b) was speaking to the officers around him and walking back towards his doorway as PO Martino approached, and the video shows no indication that he sought to venture further out into public as prohibited by the curfew. § 87(2)(g)

it is therefore recommended that **Allegations T and U be substantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b)
- § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 40**).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 41**).
- PO Hussain has been a member of service for five years and has been a subject in one other CCRB complaint and two other allegations, none of which were substantiated. § 87(2)(g)
- PO Larkin has been a member of service for 13 years and this is the first CCRB complaint in which he has been subject.
- PO Ortiz has been a member of service for two years and this is the first CCRB complaint in which he has been subject.

- PO Martino has been a member of service for six years and has been a subject in two other CCRB complaints and two other allegations, one of which was substantiated.
 - Complaint number 201705694 involved a substantiated allegation of Abuse of Authority (refusal to provide name/shield number) against PO Martino. The Board recommended Command Discipline A and the NYPD imposed Instructions.
 - § 87(2)(g)
- PO Suazo-Rodas has been a member of service for four years and has been a subject in two other CCRB complaints and six other allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Ruiz has been a member of service for 16 years and has been a subject in 16 other CCRB complaints and 36 allegations, four of which were substantiated. § 87(2)(c)
 - CCRB complaint number 201311028 involved a substantiated allegation of Abuse of Authority (other) against Sgt. Ruiz. The Board recommended Formalized Training and the NYPD imposed Instructions.
 - CCRB complaint number 201505505 involved substantiated allegations of Abuse of Authority (other and stop) against Sgt. Ruiz. The Board recommended Command Discipline A and the NYPD has not yet imposed discipline.
 - CCRB complaint number 202004517 involved a substantiated allegation of Abuse of Authority (threat of arrest) against Sgt. Ruiz. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline.

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming false arrest, false imprisonment, excessive force, abuse of process, violation of procedural due process, assault, battery, illegal search and seizure, negligence, negligent hiring and supervision, malicious prosecution, and malicious abuse of process and seeking \$500,000 as redress (**Board Review 08**).
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming the violation of civil rights, unlawful assault and battery, wrongful and unlawful seizure and arrest, unlawful imprisonment, the infliction of emotional trauma, battery, carelessness, failure to intervene, recklessness and/or negligence in the hiring, retention and training of the individual police officers who committed these acts, physical injuries consisting of, among other things, lacerations to his head requiring staples, bruising and welts to his left and right shoulders and on his back, cuts and bruises to his hands and wrists, headaches, substantial pain and soreness, psychological and emotional trauma and other injuries, and property damage losses and seeking \$1,001,000 as redress (**Board Review 42**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	<u>Matthew Chaves</u>	<u>SI Matthew Chaves</u>	<u>03/30/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date